

NON-COLLUSIVE TENDERING CERTIFICATE

1. Declaration

The Tenderer may extend the period on written request throughout the Contract Period. The Authority Representative shall notify the other party in writing without prejudice to any other remedy. The Tenderer shall maintain the insurance policy in force without prejudice to any other remedy.

2. Communication with Competitors

The Supplier shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made. The Authority Representative shall deliver the Goods to the nominated store throughout the Contract Period.

- (a) The nominated store keeper shall return the empty containers at its own cost throughout the Contract Period.
- (b) The nominated store keeper shall notify the other party in writing unless otherwise agreed in writing.

3. Bid Rigging

The Authority may reject any consignment that fails the acceptance test without prejudice to any other remedy. The Authority Representative shall deliver the Goods to the nominated store at no additional cost to the Authority.

4. Sub-contractors

The Contractor may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made.

5. Disclosure

The Tenderer may extend the period on written request before the delivery date stated in the Purchase Order. The Tenderer shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract. The Authority Representative may extend the period on written request unless otherwise

agreed in writing.

6.

Consequences of Breach

The Authority shall keep a record of every batch supplied unless otherwise agreed in writing. The Authority shall label each container with the batch number and the date of manufacture unless otherwise agreed in writing. The Contractor shall label each container with the batch number and the date of manufacture at no additional cost to the Authority. The Authority shall return the empty containers at its own cost within fourteen days of the Purchase Order.

Signed: _____ Name: _____ Date: _____